

# Madhyanchal Vidyut Vitran Nigam Ltd. v. Kavita Srivastava & Another

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 6 December 2022 (admission/interim order; petition pending, last listed 25 March 2026) · Writ-C No. 8737 of 2022 (Lucknow) — connected with Misc. Single No. 20946 of 2021 · **No final disposition — the writ petition (by the licensee) remains pending. By admission order dated 6.12.2022 the Single Judge, finding that 'the matter requires consideration', issued notice returnable at an early date, directed the case to be listed and connected with Misc. Single No. 20946 of 2021, and restrained coercive action against the petitioner-licensee till the next date of listing. The interim protection has been extended repeatedly before successive Single Judges; as of the last order in the record, dated 25 March 2026, the matter awaits hearing.**

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## HEADNOTE

A licensee's pending challenge to a Consumer Grievance Redressal Forum/Ombudsman order. The distribution licensee (Madhyanchal Vidyut Vitran Nigam Ltd.) impugned an order of opposite party no.2 (the Forum/Ombudsman) allowing the consumer's complaint. Its counsel contended that the complaint, filed in 2020 against a bill dated May 2011, could not have been entertained after the 2019 First Amendment to clause 5.4 of the UPERC (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, and that the complaint had been allowed under section 56(2) of the Electricity Act, 2003 and paragraph 6.15B of the U.P. Electricity Supply Code, 2005 without any plea of those provisions, which could not have been done. Without deciding the merits, the Single Judge (Lucknow Bench) held that 'the matter requires consideration', issued notice, connected the case with Misc. Single No. 20946 of 2021, and restrained coercive action against the licensee till the next date. The interim protection was extended repeatedly and the petition remains pending (last listed 25 March 2026); neither the maintainability bar under the 2019 amendment nor the section 56(2)/6.15B and non-pleading contentions has been adjudicated.

## FACTUAL SUMMARY

The petitioner, Madhyanchal Vidyut Vitran Nigam Ltd. (the distribution licensee) and another, filed Writ-C No. 8737 of 2022 before the Lucknow Bench challenging an order of opposite party no.2 (the Consumer Grievance Redressal Forum/Electricity Ombudsman) that had allowed the complaint of opposite party no.1, Kavita Srivastava. According to the licensee's counsel, the complaint had been filed in 2020 challenging a bill dated May 2011; it could not have been entertained in view of the amendment to clause 5.4 of the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulation (First Amendment) 2019; and the complaint had nonetheless been allowed under section 56(2) of the Electricity Act, 2003 and paragraph 6.15B of the U.P. Electricity Supply Code, 2005 without any plea of those provisions. By admission order dated 6.12.2022, the Single Judge (Hon'ble Manish Kumar, J.) found that the matter required consideration, issued notice returnable at an early date, directed the case to be listed and connected with Misc. Single No. 20946 of 2021, and restrained coercive action against the petitioners till the next date of listing. On 29.5.2023 the respondents were granted time to file a counter affidavit, and the interim order was continued. The matter was thereafter listed before successive Single Judges (latterly Hon'ble Alok Mathur, J.) with repeated adjournments and continuation of the interim order. As of the last order in the record, dated 25 March 2026, the petition remained pending.

## REUSABLE CONSTRUCTIONS

1. A distribution licensee challenging a Consumer Grievance Redressal Forum/Ombudsman order may obtain interim protection restraining coercive action against it pending the writ, where the Court finds that the challenge — e.g., that the complaint was time-barred or was decided contrary to the Act and the Code — requires consideration.  
order of 6.12.2022

## HOLDING-UNITS

### INTERPLAY · EA2003::56(2)

OBITER

Prima facie challenge that the Forum/Ombudsman allowed the complaint under s.56(2)/para 6.15B without those provisions being pleaded; interim protection to the licensee

## QUESTION

Is the licensee's contention — that the Forum/Ombudsman allowed the consumer's complaint under section 56(2) of the Electricity Act, 2003 and paragraph 6.15B of the U.P. Electricity Supply Code, 2005 without any plea of those provisions — prima facie arguable so as to warrant interim protection?

#### HOLDING

Prima facie yes; the merits were not decided. On the licensee's submission that the Forum (opposite party no.2) had allowed the complaint 'under the said provision which could not have been done' without any plea of section 56(2) of the Electricity Act, 2003 or paragraph 6.15B of the U.P. Electricity Supply Code, 2005, the Single Judge held that the matter required consideration, issued notice, and restrained coercive action against the licensee till the next date. The point was left open; the petition remains pending. **order of 6.12.2022**

**EVIDENCE** *“the complaint was entertained and without any plea of section 56.2 of Electricity Act, 2002 and paragraph 6.15 B of the Uttar Pradesh Electricity Supply Code-2005, the complaint of the opposite party no.1 has been allowed by the opposite party no.2 under the said provision which could not have been done”* **order of 6.12.2022**

**EVIDENCE** *“Till the next date of listing no coercive action shall be taken against the petitioners”* **order of 6.12.2022**

**FLAG** Order-sheet, Lucknow Bench, Single Judge; no printed page numbers or numbered paragraphs (pin\_basis=date). Admission/interim order only; contentions prima facie and undecided. Source reads 'section 56.2 of Electricity Act, 2002' — to be read as section 56(2) of the Electricity Act, 2003.

#### HOLDING-UNIT · CGRF-2007::5.4

OBITER

Prima facie challenge that a 2020 complaint against a May-2011 bill could not be entertained after the 2019 First Amendment to clause 5.4 of the CGRF/Ombudsman Regulations

#### QUESTION

Could the Consumer Grievance Redressal Forum/Ombudsman entertain a complaint filed in 2020 against a bill dated May 2011 after the 2019 First Amendment to clause 5.4 of the UPERC (CGRF and Electricity Ombudsman) Regulations?

#### HOLDING

Not decided; raised as a prima facie maintainability bar. The licensee contended that the said complaint could not have been entertained in view of the 2019 First Amendment to clause 5.4 of the UPERC (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations. The Single Judge found that the matter required consideration and issued notice, but did not rule on maintainability; interim protection was granted and the petition remains pending. **order of 6.12.2022**

**EVIDENCE** *“The said complaint could not have been entertained in view of the amendment in clause 5.4 of the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal forum and Electricity Ombudsmen) Regulation (First Amendment) 2019”* **order of 6.12.2022**

**EVIDENCE** *“The matter requires consideration”* **order of 6.12.2022**

#### PRINCIPLE TAGS

**interim-protection-to-licensee-pending-challenge-to-forum-order** Coercive action against the licensee restrained pending its writ challenging a Consumer Grievance Redressal Forum/Ombudsman order allowing a consumer's complaint. **order of 6.12.2022**

**ombudsman-cannot-direct-contrary-to-act-and-code** Prima facie (undecided) contention that the Forum/Ombudsman allowed a time-barred complaint and decided it under section 56(2)/para 6.15B contrary to the Act and the Code; matter found to require consideration. **order of 6.12.2022**

#### NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER THE CGRF/OMBUDSMAN COULD ENTERTAIN A COMPLAINT FILED IN 2020 AGAINST A BILL DATED MAY 2011 AFTER THE 2019 FIRST AMENDMENT TO CLAUSE 5.4 OF THE UPERC (CGRF AND ELECTRICITY OMBUDSMAN) REGULATIONS**

Raised by the licensee; the Court found 'the matter requires consideration' and issued notice, but did not decide maintainability. Petition pending. **order of 6.12.2022**

**NOT DECIDED — WHETHER THE FORUM/OMBUDSMAN COULD ALLOW THE COMPLAINT UNDER SECTION 56(2) OF THE ELECTRICITY ACT, 2003 AND PARAGRAPH 6.15B OF THE U.P. ELECTRICITY SUPPLY CODE, 2005**

**WITHOUT THOSE PROVISIONS BEING PLEADED**

Raised by the licensee; not adjudicated. Interim protection against coercive action granted pending final hearing. See SCJ-1264 on paragraph 6.15B read with section 56 as not an independent limitation. [order of 6.12.2022](#)

**RELATED CASES — SEE ALSO**

**SCJ-1264** — Directly on the interplay in issue: paragraph 6.15B read with section 56 is not an independent limitation.

**SCJ-2192** — Two-year limitation for recovery of arrears under clause 6.15B — the recovery-limitation theme raised here.

**SCJ-490** — Same posture: licensee's challenge to an Ombudsman order alleged to direct contrary to the Act and the Code.

**SCJ-214** — Clause 6.15 two-year bar treated as mandatory; frames the limitation contention on the impugned bill.

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*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*